

The Restriction Of Import, Manufacture And Use Of Lindane (Gamma B.H.C.) Order, 2007

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UNION OF INDIA

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The Restriction Of Import, Manufacture And Use Of Lindane (Gamma B.H.C.) Order, 2007

Rule THE-RESTRICTION-OF-IMPORT-MANUFACTURE-AND-USE-OF-LINDANE-GAMMA-B-H-C-ORDER-2007 of 2007

Published on 29 August 2007

Commenced on 29 August 2007

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The Restriction Of Import, Manufacture And Use Of Lindane (Gamma B.H.C.) Order, 2007

Published vide Notification Gazette of India, Extra; Part 2, Section 3(ii), dated 29th August, 2007 1826.

S.O. 1472 (E), dated 29th August, 2007. - Whereas, the Central Government, in exercise of the powers conferred by sub-section (2) of Section 27 of the Insecticides Act, 1968 46 of 1968), published a draft Order to prohibit the import, manufacture and use of Lin are Gamma BHC) except for termite control in buildings including wood, termite control in agriculture as per the approved label claims by the Registration Committee and for export vide notification of the Government of India in the Ministry of Agriculture (Department of Agriculture and Cooperation), Number S.O. 1532(E),

dated the 25th October, 2005 for inviting objections and suggestions from all persons likely to be affected thereby before the expiry of a period of forty-five days from the date on which copies of the Official Gazette containing the said notification were available to the public;

And, whereas, copies of the said Gazette were made available to the public on the 25th day of October, 2005;

And, whereas, the objections and suggestions received from the public in respect of the said draft Order, were duly considered by the Central Government;

Now, therefore, exercise of the powers conferred by sub-section (2) of Section 27 read with Section 26, the Insecticides Act, 1968 (46 of 1968), the Central Government hereby makes the following Order, namely :-

1.

(1)

This order may be called the Restriction of Import, Manufacture and Use of Lindane (Gamma B.H.C.) Order, 2007.

(2)

It shall come into force on the date of its publication in the Official Gazette.

2.

No person shall import, manufacture or use Lindane except-

(i)

for termite control in buildings including wood;

(ii)

for termite control in agriculture as per the approved label claims by the Registration Committee; and

(iii)

for exports.

3.

(1)

All certificates of registration granted for Lindane shall be called back by the Registration Committee from all registrants including new registrants for incorporation of the requirement of the warning in bold letters "only for use in termite control in buildings including wood, termite control in agriculture as per approved Table claims by the Registration Committee and for exports" on tables and leaflets.

(2)

If any person fails to return the certificate of registration, as per this order within a period of six months from the date of publication of this notification, the license granted to him under Section 13 of the said Act shall not be renewed and action Section 14 of the said Act shall be taken.

4.

Every State Government shall take all such steps under the provisions of the said Act and the rules made thereunder, as it considers necessary for the execution of this order in the State.

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